



File No.: EXP202305727

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 14, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On March 14, 2023, a complaint was submitted to this Agency by Mr. A.A.A. (hereinafter, the complainant) against DIGI SPAIN TELECOM, S.L. (hereinafter, the respondent) for not having duly addressed his right of access to personal data.

The complainant sent an email to the respondent requesting "(...) the call log of my line for the period ***PERIOD.1". After an exchange of emails to provide the signed request and specify the requested period, the respondent replied that "(...) we only have a service for requesting outgoing calls," to which the complainant responded that "(...) I have requested both incoming and outgoing calls due to a matter of necessity, under the right of access provided by the GDPR," reiterating that the respondent stated "(...) we can only manage details of outgoing calls. Incoming calls are not possible."

The complainant submitted the exchanged emails with the telecommunications operator.

SECOND: The respondent indicated in their response to the transfer of the complaint carried out by this Agency that they indeed received the exercise of the complainant's right of access and that it was duly addressed by providing all the data they are legally able to provide. Among these are the outgoing calls, as their legitimacy in processing this data would be based on the needs for billing and collection for the services provided to their customers.

However, they assert that, regarding incoming calls, they do not have the same legitimacy. They justify their inability to provide incoming call data based on Law 25/2007 of October 18, on the retention of data related to electronic communications and public communications networks (Law 25/2007), indicating that the legitimacy for processing this data is found in Article 3 of this law, which establishes the data that must be retained by operators. Article 5 establishes a general retention period of twelve months, with exceptions, and Articles 6 and 7 regulate the general rules for the transfer of this data, which can only be transferred by judicial authorization or to authorized agents as established in Article 6, where telecommunications operators are not included.

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It also states that the impact on the rights of third parties involved in the requested calls must be taken into account. The respondent indicates that it is available to this Agency to modify its position if the Agency reasonably deems that its position is incorrect.

In light of the above, this Agency, in its resolution dated July 3, 2023, considered that the right had been addressed.

THIRD: Dissatisfied with the resolution, the claimant filed a motion for reconsideration arguing that they request the details of the incoming and outgoing calls associated with their mobile phone line, as their request has been ignored since the telecommunications operator being claimed refuses to provide the record of incoming calls for the requested period, as they only have the service for requesting outgoing calls, causing them harm as they need this information for a trial in which they are the complainant.

Upon instructing the corresponding Motion for Reconsideration procedure, in which the respondent was given a hearing, on March 8, 2024, the Director of this Agency deemed it appropriate.

FOURTH: As a consequence of the acceptance of the aforementioned Motion for Reconsideration, the present Rights Procedure was opened, transferring the documentation to the respondent, so that within ten working days they could submit the arguments they deemed appropriate.

The respondent stated, in summary, that it reiterates what has already been indicated in the previously sent writings:

- “1. That the balancing of rights and obligations should be taken into account not only for DIGI and the claimant but also with respect to third parties, as well as the restrictions described in Law 25/2007 of October 18, on the retention of data related to electronic communications and public communications networks. That is, the limitation of processing exclusively for the provision to Authorized Agents and Judicial Bodies, as provided in said Law.
2. That the specification in the transfer of the resource for the requested period (**PERIOD.1) does not change its nature as incoming calls whose sole purpose of retention is to be made available to the State bodies indicated in the cited Law.
3. That, coherently, this type of information is available to the Judicial Bodies which, should they find the request made by the claimant through said Judicial Bodies pertinent and justified, could and indeed can require it from this operator as part of the powers of said Bodies, all following the applicable procedural and constitutional guarantees.
4. That DIGI understands (...) that Law 25/2007 constitutes an exception to the fundamental right to data protection, and also to the right to guarantee the secrecy of communications (which could also be affected in the event of disclosing information about certain communications to third parties other than the Authorized Agents, as defined in said Law). Therefore, as such a restriction, it must be interpreted restrictively in all its application.”

The respondent indicates that Guidelines 01/2022 refer to messaging services, and that these imply significant material differences compared to the communication channel based on calls.

“Indeed, there is a wide variety of messaging services. Most of them normally presuppose the need for the final recipient to have different types of keys to access the messaging system. However, calls can be answered by personnel other than the usual user of the line. Furthermore, it is very common in the telecommunications sector for a line to be in the name of one holder while its user is different. (...)”

FIFTH: After examining the document submitted by the respondent, it is transferred to the claimant, so that, within ten working days, they can formulate the arguments they consider appropriate, stating, in summary, and as far as this procedure is concerned, “(...) to reiterate my position and the claim made as the holder of the line at that time. As well as to remind that this information belongs to the communication between both parties (the receiver and the sender of the call), and must be included when requesting access to the data.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the

function of cooperating with said authority.

The initiation of this procedure arises from the improper handling of a request to exercise the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: “When the procedure refers exclusively to the failure to address a request to exercise the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the controller or processor to address the requests to exercise the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

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The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right shall be deemed granted if the controller provides remote access to the data, considering the request addressed (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once during a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered, which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal

data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the complainant requested a record of the incoming and outgoing calls from their phone number over a specific period, and that the respondent has only provided the outgoing calls.

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The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state the following:

“6.1. General Observations

165. The right of access is subject to the limits resulting from Article 15, paragraph 4, of the GDPR (rights and freedoms of others) and from Article 12, paragraph 5, of the GDPR (manifestly unfounded or excessive requests). Furthermore, Union or Member State legislation may restrict the right of access in accordance with Article 23 of the GDPR. Exceptions related to the processing of personal data for scientific, historical, or statistical purposes or for archiving in the public interest may be based on Article 89, paragraph 2, and Article 89, paragraph 3, of the GDPR, and exceptions for processing carried out for journalistic purposes or for academic, artistic, or literary expression may be based on Article 85, paragraph 2, of the GDPR.

166. It is important to note that, aside from the aforementioned limits, exceptions, and possible restrictions, the GDPR does not allow for other exemptions or exceptions to the right of access. This means, among other things, that the right of access does not have any general reservation regarding proportionality concerning the efforts that the data controller must make to comply with the request of the data subjects under Article 15 of the GDPR. Furthermore, it is not permitted to limit or restrict the right of access in a contract between the data controller and the data subject.”

Similarly, the same guidelines interpret the scope of the aforementioned right of access, denying an excessively restrictive interpretation and allowing for the possibility that its exercise may include data that may affect other individuals:

The scope of the right of access is determined by the scope of the concept of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name, address, phone number, etc., a wide variety of data may be included in this definition, such as medical findings, purchase history, creditworthiness indicators, activity logs, search activities, etc. Personal data that has been subjected to pseudonymization remains personal data rather than anonymous data. The right of access refers to the personal data of the person making the request. This should not be interpreted excessively restrictively and may include data that may also affect other individuals, for example, the communication history involving incoming and outgoing messages.

Finally, regarding access to traffic and location data retained in compliance with Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, it should be noted that the main objective of said Law 25/2007 is to establish the obligation of telecommunications operators to retain certain data generated or processed by them, in order to enable authorized agents to have access to them. Authorized agents include, among others, members of the

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Authorized Police Bodies for this purpose within the framework of a criminal investigation for the commission of a crime.

In this regard, the Law respects the pronouncements that the Constitutional Court has issued concerning the right to the secrecy of communications, a respect that is particularly articulated through two guarantees: first, that the data for which the obligation of retention is established are data exclusively linked to the communication, whether by telephone or made via the Internet, but in no case revealing the content of it; and, second, that the transfer of such data affecting a specific communication or communications will always require prior judicial authorization.

Article 1.1 of the aforementioned Law 25/2007 provides that

“1. This Law aims to regulate the obligation of operators to retain the data generated or processed in the context of providing electronic communications services or public communication networks, as well as the duty to transfer such data to authorized agents whenever they are requested through the corresponding judicial authorization for the purposes of detecting, investigating, and prosecuting serious crimes contemplated in the Penal Code or in special criminal laws.”

And Article 3, Data Subject to Retention:

“1. The data that must be retained by the operators specified in Article 2 of this Law are as follows:

a) Data necessary to trace and identify the origin of a communication:

1º Regarding fixed network telephony and mobile telephony:

i)

Calling telephone number.

ii)

Name and address of the subscriber or registered user. (...)

b) Data necessary to identify the destination of a communication:

1º Regarding fixed network telephony and mobile telephony:

i)

The number or numbers dialed (the destination telephone number or numbers) and, in cases where other services are involved, such as call forwarding or transfer, the number or numbers to which the calls are transferred.

ii)

The names and addresses of the subscribers or registered users. (...)

c) Data necessary to determine the date, time, and duration of a communication:

1º Regarding fixed network telephony and mobile telephony: the date and time of the start and end of the call or, where applicable, of the messaging service or multimedia service.

(...)

d) Data necessary to identify the type of communication.

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Regarding fixed network telephony and mobile telephony: the telephone service used: type of call (voice transmission, voicemail, conference, data), supplementary services (including call forwarding or transfer) or messaging or multimedia services used (including short message services, advanced multimedia services, and multimedia services).

(...)

e) Data necessary to identify the communication equipment of the users or what is considered to be the communication equipment:

1º Regarding fixed network telephony: the origin and destination telephone numbers.

2º Regarding mobile telephony:

i)

The origin and destination telephone numbers.

ii)

The International Mobile Subscriber Identity (IMSI) of the calling party.

iii) The International Mobile Equipment Identity (IMEI) of the calling party.

iv)

The IMSI of the receiving party.

v)

The IMEI of the receiving party.

vi)

In the case of anonymous prepaid services, such as services with prepaid cards, the date and time of the first activation of the service and the location tag (cell identifier) from which the service was activated.

(...)

f) Data necessary to identify the location of the mobile communication equipment:

1º The location tag (cell identifier) at the start of the communication.

2º

The data that allows determining the geographical location of the cell, by reference to the location tag, during the period in which the communication data is retained.

2. No data that reveals the content of the communication may be retained under this Law.”

Article 6, General Rules on Data Transfer, of the aforementioned law establishes that:

“1. The data retained in accordance with the provisions of this Law may only be transferred in accordance with its provisions for the purposes determined and with prior judicial authorization.”

Article 9 of the aforementioned Law 25/2007, Exceptions to the Rights of Access and Cancellation, provides that:

“1. The data controller shall not communicate the transfer of data made in accordance with this Law.

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2. The data controller shall deny the exercise of the right to cancellation under the terms and conditions provided in Organic Law 15/1999, of December 13.”

The exceptions regarding the exercise of the rights in Articles 15 to 22 of the GDPR must be established by law. Furthermore, from the transcription of Article 9, it can be easily observed that no restriction is established concerning the possibility of exercising the right of access. It only contains the obvious precautions that the data subject does not need to be informed of the transfer of the data (an obvious issue given that it concerns criminal investigations), and that the right to erasure cannot be exercised. The conclusion is that the location data of the telephone line may be subject to a request for the right of access to personal data by its holders.

In this case, from the examination of the documentation provided by the parties, it has been established that the claimant requested the defendant access to the record of incoming and outgoing calls from their mobile phone for the year 2022, and that the defendant only provided the record of outgoing calls.

During the processing of the procedure, the defendant has indicated that “(...) the balancing of rights and obligations should be taken into account not only for DIGI and the claimant but also with respect to third parties, as well as the restrictions described in Law 25/2007 of October 18, on the retention of data related to electronic communications and public communications networks. That is, the limitation of processing exclusively for the provision to Authorized Agents and Judicial Bodies, as provided in that Law.

In this regard, it is worth noting that, in this case, the exercise of the right of access is based on a call

log and not on the content of the communications themselves. Therefore, there is no impact on the rights and obligations of third parties since only the holder of the incoming or outgoing call, the date and time of that call, and, where applicable, the duration of the call will appear in the records. Such data is already recorded by default on mobile devices when calls are made and received by their holders.

In this case, the denial of access cannot be based on a supposed limitation of the right of access imposed by Law 25/2007, since, as already noted, this law does not establish any limitation for the exercise of the right of access.

Consequently, it is appropriate to uphold the claim that led to this procedure in order for the defendant to provide the requested access or to deny it with justification and reasoning.

Considering the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. as it is considered that the provisions of Article 15 of the GDPR have been infringed and to urge DIGI SPAIN TELECOM, S.L. with NIF B84919760, to provide the claimant with a certification within ten working days following the notification of this resolution, addressing the requested right or justifying the denial by indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to DIGI SPAIN TELECOM, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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